

TEXAS OWNER-BUILDER PERMIT KIT

Find your track · File what binds you · Pass the inspections that exist

Project Address: _____

County: _____

City / ETJ / unincorporated: _____

Owner-Builder: _____

Every Texas statute, agency rule, and requirement in this kit is cited on
the page it appears on — verified August 2026.

BUILD YOUR HOUSE

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First Edition — 2026

How to Use This Kit

Five working documents that take a Texas owner-builder from "do I even need a permit?" to a house you can legally occupy, insure, and power.

Texas licenses no general contractors and issues no state residential building permit — as of August 2026 the Texas Department of Licensing and Regulation's own list of regulated programs contains no general-contractor or home-builder program, and the Texas Residential Construction Commission's statute expired in 2009 and was not replaced. Anyone, including you, may build a house. **But Texas is not a no-rules state.** The rules attach to the three licensed trades, to the land (septic, floodplain, driveway, well), to the coast (windstorm), to energy (a statewide energy code that applies even where no permit exists), and to the homestead lien system. Which of these bind you depends almost entirely on one question: **is your lot inside a city's limits or not?**

Absence of a state GC license: TDLR regulated-program list, tdlr.texas.gov, checked August 2026 — verify nothing has changed there before you rely on it. Three trades ARE licensed: electrical, plumbing, HVAC (Occupations Code Chs. 1305, 1301, 1302) — see TX.1.

THE TWO TRACKS — THE HEADLINE OF THIS KIT

Track A vs. Track B — where your lot is decides everything

	TRACK A — inside a city's limits	TRACK B — unincorporated county
Who issues a building permit	The city. The IRC "as it existed on May 1, 2012" is the statutory municipal residential code; cities amend it and adopt newer editions, and the big cities all have. The city must act on your application within 45 days. (§§ 214.212, 214.904)	Usually nobody. Counties generally cannot require a building permit for a single-family house — even the opt-in county building-standards subchapter "may not be construed to require prior approval by the county." (§ 233.153(d)(1))
What binds you anyway	The city's adopted codes, its inspection ladder, contractor registration, owner-builder ("homestead") permit rules, plat and zoning requirements, and the certificate of occupancy at the end.	Septic permit BEFORE construction (Health & Safety Code § 366.051), floodplain development permit (Water Code §§ 16.315, 16.3145), the statewide energy code (§§ 388.003–.004), trade licensing everywhere, and — on the coast — TDI windstorm certification (Insurance Code Ch. 2210).
Who inspects	The city's inspectors, at every rung of the ladder, ending in a certificate of occupancy. See TX.3.	Five separate inspectors at most — septic, windstorm, energy, the electric utility's meter release, and (in opt-in counties) three private inspections. Nobody inspects your wiring by default. See TX.3.

Local Gov't Code §§ 214.212, 214.904, 233.153(d)(1); Health & Safety Code §§ 366.051, 388.003–.004; Water Code §§ 16.315, 16.3145; Insurance Code Ch. 2210. Statute text read at statutes.capitol.texas.gov, August 2026. How to determine your track — including the ETJ, the in-between zone — is worked in TX.4.

WHAT IS IN THE KIT

The five documents

	Document	What it does for you
TX.1	The Owner-Builder's Legal Position	No state license, no state permit — and the three trade-licensing regimes whose homeowner exemptions each use different words with different traps. Read this first.
TX.2	Permit Application Checklist	Two checklists — one per track — plus the homestead lien rules that follow you on either one.
TX.3	Inspection Sequence	The municipal ladder on Track A; the five separate inspectors — and the honest gaps — on Track B.
TX.4	Where to File Directory	How to determine your track, the state agencies, the high-volume jurisdictions, and a page to fill in your own.
TX.5	Forms & Documents Index	Each named form you will meet — WPI-1, TCEQ 0235, city homestead affidavits — what it is and where it lives.

HOW TO USE IT

- **Settle your track before anything else** — city limits, ETJ, or unincorporated county (TX.4 shows how). Every other answer in this kit depends on it.
- **Read TX.1 before you plan to do your own wiring, plumbing, or HVAC.** The three homeowner exemptions are not interchangeable, and the electrical one has a trap for new construction.
- **Work TX.2 with a pen** and do not file — or, on Track B, do not break ground — until the boxes are checked. The septic permit and the coastal windstorm notice both come BEFORE construction.
- **Keep TX.3 on the job** and record every inspection date and result as it happens — on Track B, the inspections you arrange are the only record that will ever exist.
- **Fill in TX.4 before you need it.** Texas splits the answers across a city, a county, and up to six state agencies; ten minutes of calls early saves weeks later.

How these facts were checked — and what this is not

Every Texas claim here was read against its primary source in August 2026 — statute text at statutes.capitol.texas.gov, agency facts on the agency's own pages — and is cited where it appears. Where cities or counties differ, the kit says so and gives the verification step instead of an answer that would rot. This is a process reference, not legal advice, and does not replace the office that will actually permit or inspect your build. Texas passed major preemption and ETJ legislation as recently as 2023–2025 — confirm anything you rely on.